THE JAMMU AND KASHMIR REPRESENTATION OF THE PEOPLE (SUPPLEMENTARY) ACT, 1968

ARRANGEMENT OF SECTIONS

SECTIONS

1. Short title and commencement.
2. Application of sections 116A, 116B and 116C of the Representation of the People Act, 1951, to orders made by Jammu and Kashmir High Court.
3. Repeal and saving.

IndiaCode

THE JAMMU AND KASHMIR REPRESENTATION OF THE PEOPLE (SUPPLEMENTARY) ACT, 1968

ACT NO. 3 OF 1968

[23*rd March*, 1968.]

An Act to supplement the Jammu and Kashmir Representation of the People Act, 1957.

BE it enacted by Parliament in the Nineteenth Year of the Republic of India as follows:—

1. Short title and commencement.—(*1*) This Act may be called the Jammu and Kashmir Representation of the People (Supplementary) Act, 1968.

(*2*) It shall be deemed to have come into force on the 9th day of February, 1968.

2. Application of sections 116A, 116B and 116C of the Representation of the People Act, 1951, to orders made by Jammu and Kashmir High Court.—The provisions of sections 116A, 116B and 116C of the Representation of the People Act, 1951 (43 of 1951) shall, so far as may be, apply to every order made by the High Court of Jammu and Kashmir subject to the following modifications, namely:—

(*a*) references therein to the High Court shall be construed as including references to the High Court of Jammu and Kashmir,

(*b*) references therein to the State Legislature or to the Speaker or Chairman thereof, shall be construed as including references to the Legislature of the State of Jammu and Kashmir* and to the Speaker or Chairman thereof, and

(*c*) references therein to the provisions of the Representation of the People Act, 1951 (43 of 1951), shall, in relation to the State of Jammu and Kashmir*, be construed as references to the corresponding provisions of the Jammu and Kashmir Representation of the People Act, 1957 (Jammu and Kashmir Act No. IV of 1957).

3. Repeal and saving.—(*1*) The Jammu and Kashmir Representation of the People (Supplementary) Ordinance, 1968 (2 of 1968) is hereby repealed.

(*2*) Notwithstanding such repeal, anything done or any action taken under the said Ordinance shall be deemed to have been done or taken under this Act 1957.

*. *Vide* notification No. S.O. 3912(E), dated 30th October, 2019, this Act is made applicable to the Union territory of Jammu and Kashmir and the Union territory of Ladakh.